

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Conway	Team: Team # 6	CCRB Case #: 201211468	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/28/2012 12:48 AM	Location of Incident: § 87(2)(b)	Precinct: 44	18 Mo. SOL 2/28/2014	EO SOL 2/28/2014	
Date/Time CV Reported Tue, 09/04/2012 1:42 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 09/04/2012 1:42 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. CPT Johnny Orellana	00000	920679	044 PCT
2. LT Ronald Bolte	00000	918765	044 PCT
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Robert Miceli	12143	950886	PBBX
2. POM Briant Nixon	00597	952055	PBBX
3. POM Jose Espinal	20735	951717	PBBX
4. POM Jose Vives	17271	951401	044 PCT
5. SGT Christian Hernandez	04137	928473	PBBX
6. POM Michael Brosnan	01760	948697	044 PCT
7. POM Michele Butera	21154	948723	044 PCT
8. POM Robert Mccadden	12997	945974	044 PCT
9. POM Martin Mcmanus	03350	937074	044 PCT
10. POM Michael Woloski	02703	952355	044 PCT
11. POM Harry Pell	07048	952100	044 PCT
12. POM Calvin Black	01730	948676	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Officers strip-searched § 87(2)(b)	
B. Officers	Force: Officers used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
C.CPT Johnny Orellana	Abuse: Lt. Johnny Orellana threatened to arrest § 87(2)(b) [REDACTED]	[REDACTED]
D.LT Ronald Bolte	Discourtesy: Lt. Ronald Bolte spoke discourteously to § 87(2)(b) [REDACTED] and others.	[REDACTED]
E.LT Ronald Bolte	Discourtesy: Lt. Ronald Bolte spoke discourteously to an individual.	[REDACTED]
F.LT Ronald Bolte	Force: Lt. Ronald Bolte used physical force against an individual.	[REDACTED]
G.CPT Johnny Orellana	Off. Language: Lt. Johnny Orellana made remarks based upon the sex of § 87(2)(b) [REDACTED]	[REDACTED]
H.CPT Johnny Orellana	Force: Lt. Johnny Orellana struck § 87(2)(b) [REDACTED] with a flashlight.	[REDACTED]
I.CPT Johnny Orellana	Off. Language: Lt. Johnny Orellana made remarks to § 87(2)(b) [REDACTED] based upon race.	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On September 4, 2012, § 87(2)(b) filed this complaint online with the CCRB. § 87(2)(b) reported that at approximately 12:48 a.m. on August 28, 2012, officers of the 44th Precinct responded to a disorderly group on her block outside her home at § 87(2)(b) in the Bronx. An altercation ensued between civilians and officers, and four individuals were arrested, including § 87(2)(b). Lt. Ronald Bolte and Lt. Johnny Orellana were the commanding officers on the scene. The following allegations resulted from this incident:

Allegation A—Abuse of Authority: Officers strip-searched § 87(2)(b)

Allegation B—Force: Officers used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation C—Abuse of Authority: Lt. Johnny Orellana threatened to arrest § 87(2)(b)

§ 87(2)(g)

Allegation D—Discourtesy: Lt. Ronald Bolte spoke discourteously to § 87(2)(b)

and other individuals.

§ 87(2)(g)

Allegation E—Discourtesy: Lt. Ronald Bolte spoke discourteously to

§ 87(2)(b)

Allegation F—Force: Lt. Ronald Bolte used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation G—Offensive Language: Lt. Johnny Orellana made remarks based upon the sex of § 87(2)(b)

§ 87(2)(g)

Allegation H—Force: Lt. Johnny Orellana struck § 87(2)(b) with a flashlight.

Allegation I—Offensive Language: Lt. Johnny Orellana made remarks to § 87(2)(b) based on race.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

On May 1, 2013, this case was reassigned to Investigator John Phillips, following Investigator Takeya Patterson's departure from the agency. On September 10, 2013, this case was reassigned to Investigator Christopher Conway, following Investigator Phillips' departure from the agency.

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) on the incident date. She is a black female, who is 5'4 and weighs 180 pounds with black hair and brown eyes. § 87(2)(b)

Notice of Claim

§ 87(2)(b) stated in her notice of claim (encl. 27n-p) that at the time and place of occurrence, she was “pushed and thereafter grabbed by the arms, had her arms twisted and was thrown down on steps by the Respondent Police Officers [identified in the notice of claim as Lt. Orellana, Lt. Bolte, and PO Miceli]. Thereafter, claimant was forcefully placed in handcuffs and had pulled on by the Respondent Police Officers. Thereafter, claimant was struck with a flashlight by one of the Respondent Police officers. Throughout the assault the Respondent Police Officers used derogatory and racist language toward the claimant. Claimant did not resist arrest.”

CCRB Testimony

On September 27, 2012, § 87(2)(b) was interviewed at the CCRB (encl. 7a-d).

Around 12:48 a.m. on August 28, 2012, § 87(2)(b) was sitting in front of her building at § 87(2)(b) in the Bronx with her friends, § 87(2)(b) and two other individuals identified only as § 87(2)(b) and § 87(2)(b). A group of about five young males was arguing verbally across the street on the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b) could not hear what they were talking about. After about three minutes, five uniformed police officers arrived on foot. Two were black males, two were Hispanic males and one was a white male. The officers allowed the males to leave without arresting them. After a short while, a glass jar came crashing down in front of the officers from the roof of the building behind them, nearly striking them.

The officers took out their flashlights and walked into the building from where the glass was thrown. § 87(2)(b) soon also observed the officers on the roof of the building. Within minutes approximately ten uniformed officers arrived in marked vehicles. The officers who arrived brandished their asps and stood in two lines on § 87(2)(b) on the same side of the street § 87(2)(b) was on. The initial five officers also joined the two-line formation. At this time a number of civilians exited § 87(2)(b) and stood in front of the building to view the officers, including § 87(2)(b) who § 87(2)(b) knew from the neighborhood. The officers began to march down the block towards where § 87(2)(b) and her friends were sitting. After observing the officers march towards them, § 87(2)(b) and her friends decided to walk into the building to avoid being stopped. An officer that the investigation has identified as Lt. Orellana led the formation, and he asked § 87(2)(b) where they were going and why they were trying to run. They replied that it looked as if the officers were going to harm them and that they had nothing to do with the glass that was thrown.

Officers grabbed § 87(2)(b) and two unidentified males and placed them against a fence down the block on § 87(2)(b) and several others who were in front of the building walked down the block to where the officers were to view their interaction with the males, along with a large crowd of approximately thirty people. The officers turned § 87(2)(b) around and pulled his pants down; § 87(2)(b) quickly pulled his pants back up and turned back around. § 87(2)(b) asked why the officer had pulled his pants down, and then he broke away from the officers

and along with another male ran north in the direction of § 87(2)(b). About five to six officers pursued him, and some of the people from the crowd followed the officers to video record them.

The officers returned with § 87(2)(b) a short time later and stood in front of § 87(2)(b). § 87(2)(b) walked to that location and saw that § 87(2)(b)'s face was severely swollen to the "size of a football," although § 87(2)(b) did not witness any use of force. § 87(2)(b) stood on the corner and observed the officers place § 87(2)(b) in a police vehicle, but she could not describe what the officers looked like. As § 87(2)(b) was standing in the street watching the officers, Lt. Orellana approached § 87(2)(b) and said "Get your fucking ass back on the sidewalk." § 87(2)(b) told Lt. Orellana that he was being patronizing and disrespectful, and that she has family who works for the NYPD and knows how police officers should speak to civilians. Lt. Orellana responded, "Get out of here and shut the fuck up, before I arrest your ass." § 87(2)(b) asked why she would be arrested. § 87(2)(b) was standing next to § 87(2)(b) and told her that they should leave. § 87(2)(b) walked away with § 87(2)(b) down the block south towards § 87(2)(b).

Approximately ten additional officers in marked vehicles then responded to the location, and an officer who § 87(2)(b) identified as Lt. Bolte exited his vehicle "on a rampage." Lt. Bolte shouted, "I'm thirsty, I'm thirsty. I want someone to do something. You fucking animals. Go in the house, go inside, take your ass inside." Lt. Bolte said to a male that § 87(2)(b) did not know, "Fat titty boy, get your ass in the house." As § 87(2)(b)'s friend § 87(2)(b) walked toward § 87(2)(b) to go inside, Lt. Bolte pushed him onto the ground. § 87(2)(b)'s mother called out from a window to asked him why he had pushed her son, and Lt. Bolte responded that the boy was not walking fast enough.

As Lt. Bolte was pushing people inside of the building, § 87(2)(b) asked him if she could go across the street to the building she lives in. Lt. Orellana then approached and told Lt. Bolte, "This is the bitch that I had words with a little while ago. She got a lot of mouth. I want her arrested." § 87(2)(b) replied that she did not do anything. § 87(2)(b) attempted to pull § 87(2)(b) into the building, but Lt. Orellana grabbed § 87(2)(b)'s right arm, handcuffed it and twisted it upwards. § 87(2)(b) fell, landing on her right knee. Lt. Orellana handcuffed § 87(2)(b)'s other arm and stood her up. He pulled up on the handcuffs and walked her up and down the block looking for a police vehicle to place § 87(2)(b) in. § 87(2)(b) did not resist or make any body movements; she yelled her for her mother, § 87(2)(b) in hopes that she would look out of the window and come downstairs.

By the time § 87(2)(b) came outside, § 87(2)(b) was already in an RMP. § 87(2)(b) yelled for her mother's attention out the window of the RMP. § 87(2)(b) approached and asked why § 87(2)(b) was arrested. Lt. Orellana, who was standing by the front passenger side of the RMP responded, "Clearly, it's none of your fucking business. If you want to know, go to the 44th Precinct and you'll find out. Get away from my car." § 87(2)(b) shouted through the front passenger side window of the RMP, which was rolled down about a fourth of the way, that she did not do anything and did not know why she was being arrested. Lt. Orellana stuck his flashlight in the car and quickly struck § 87(2)(b) on the left shoulder. § 87(2)(b) sat back and yelled to her mother that she was hit. § 87(2)(b) spoke to Lt. Orellana shortly, before Lt. Orellana entered the RMP with another officer and left the scene. § 87(2)(b) believed that § 87(2)(b) was attempting to obtain Lt. Orellana's shield number, but was not sure.

While sitting in the police car Lt. Orellana was taunting her; he asked where her NYPD family was at now, and called her a "dyke," a "nigger," and an "animal." § 87(2)(b) did not respond. Lt. Orellana began driving south on § 87(2)(b) driving with his left arm, and used his right arm to swing backward and hit her with his flashlight several times. § 87(2)(b) was sitting in the middle of the back seat and shielded her face from the blows, by turning her body to the

side as much as she could. An officer that the investigation identified as PO Calvin Black was driving this vehicle, but § 87(2)(b) did not interact with him or obtain his name.

§ 87(2)(b) was transported to the 44th Precinct stationhouse, where she was handcuffed to a bar near the holding cells. She observed § 87(2)(b) in a holding cell located behind her and another male named § 87(2)(b). However, she did not see when he was arrested. When she went home, § 87(2)(b) obtained Lt. Orellana's and Lt. Bolte's name from § 87(2)(b). § 87(2)(b) sustained bruising on both of her wrists from the handcuffs, bruising on her shoulder, both forearms and left side from being hit with the flashlight. On § 87(2)(b), § 87(2)(b) went to § 87(2)(b) and was prescribed ibuprofen for pain. § 87(2)(b) provided photos of § 87(2)(b)'s bruises to the investigation (encl. 9e-g).

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) on the incident date. She is a black female, who is 4'11 and weighs 120 pounds with black hair and brown eyes. § 87(2)(b)

CCRB Testimony

On September 27, 2012, § 87(2)(b) was interviewed at the CCRB (encl. 9a-b).

On August 28, 2012, § 87(2)(b) was inside of her apartment sleeping, when she heard her daughter § 87(2)(b) yelling for her through the window of her first floor apartment. § 87(2)(b) ran outside and saw about 25 uniformed police officers outside; § 87(2)(b) heard § 87(2)(b) yelling from a police vehicle on § 87(2)(b). § 87(2)(b) approached an officer who was standing in front of the vehicle, who the investigation determined to be Lt. Orellana, and asked why § 87(2)(b) was being arrested. The officer responded, "Just get on the sidewalk." § 87(2)(b) attempted to yell something to her mother out of the window. Lt. Orellana swung a black object and hit the window of the vehicle and § 87(2)(b) fell backwards. Lt. Orellana stated, "Look who's crying now. Bitch don't have a lot of mouth now." § 87(2)(b) did not see what the object was because Lt. Orellana swung it quickly and did not see whether it made contact with § 87(2)(b)'s body. § 87(2)(b) did not see where Lt. Orellana obtained the object from. Lt. Orellana did not use profanity towards § 87(2)(b) or state any other profanity.

§ 87(2)(b) spoke to another officer, who was standing at the back of the RMP with a white shirt and asked where they were taking her daughter; later on in the 44th Precinct stationhouse § 87(2)(b) found out this was Lt. Bolte. Lt. Bolte responded "You all are a bunch of animals out here" and told § 87(2)(b) that she would be taken to the 44th Precinct Stationhouse. § 87(2)(b) friend § 87(2)(b) approached and pulled § 87(2)(b) away from the situation to prevent her from being arrested. § 87(2)(b) went back into her apartment and grabbed her belongings, called a cab and stood on the corner of § 87(2)(b) and § 87(2)(b) to wait for it. Lt. Orellana was still standing outside and stated, "Didn't I tell you animals to get back on the sidewalk." § 87(2)(b) responded that she was waiting for a cab. § 87(2)(b) was still standing near § 87(2)(b) but § 87(2)(b) was not sure of whether she overheard either of the lieutenant's comments regarding animals. § 87(2)(b) could not see whether § 87(2)(b) had any injuries while in the RMP because it was dark outside. § 87(2)(b) did not see which officers transported § 87(2)(b) to the stationhouse. When § 87(2)(b) was released and returned home, § 87(2)(b) observed that she had swollen wrists, bruised arms, shoulders, thighs and back.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) on the incident date. He is a black male, who is 6'0 and weighs 180 pounds with black hair and brown eyes.

Phone Statement

On February 11, 2013, § 87(2)(b) provided a phone statement to the investigation. § 87(2)(b) stated that on the incident date, four white and Hispanic officers stopped him and placed him against a gate. An officer he could not identify pulled down his pants and exposed his skin. § 87(2)(b) ran from the police, and the four officers chased after him and beat him with asps upon his capture.

An interview was scheduled for February 15, 2013, but on that day § 87(2)(b)'s criminal attorney called the investigation to say he had advised § 87(2)(b) to not cooperate due to his pending court case. On September 16, 2013, a third phone call was made to his number after the conclusion of his criminal case and an appointment was made for an interview on September 19, 2013. § 87(2)(b) did not appear for that appointment. Two more phone calls were made to § 87(2)(b) on September 23, and September 25, 2013, and voicemails were left, but § 87(2)(b) did not respond.

Witness: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) on the incident date. She is a black female, who is 5'8 and weighs 160 pounds with black hair and brown eyes. § 87(2)(b)

CCRB Testimony

On October 4, 2013, § 87(2)(b) was interviewed at the CCRB (encl. 10ab).

Around 1:30 a.m. on August 28, 2012, § 87(2)(b) was at home at § 87(2)(b) which is on the § 87(2)(b) floor of her building, located on the west side of § 87(2)(b). She heard a lot of commotion outside, and looked out her window to see a rowdy scene with many police officers seemingly having an altercation with many young teenage boys. Because her car had recently been damaged in a large fight, she walked downstairs and went outside to move her car away from the situation. When she stepped outside, she saw a scene of "pandemonium" with many officers trying to corral approximately 10 teenage boys outside § 87(2)(b) with many onlookers surrounding. Later after the incident, § 87(2)(b) learned that one of these boys had thrown a bottle down off a roof at a police officer on foot patrol, and the officer had called in backup and they had "gone ballistic" on all the kids there. Officers had approximately 5 teenagers lined up against a gate in front of § 87(2)(b) and other officers were trying to round up the rest, and an unidentified officer was yelling and trying to control the crowd but in a frenzied manner. Several people were arrested by the time that § 87(2)(b) walked outside.

By where the five teenage boys were lined up, a young man named § 87(2)(b) was on the ground with officers standing over him, yelling that he didn't do anything. The officers were momentarily distracted, and in the chaos § 87(2)(b) jumped to his feet and started running. Officers pursued him around the corner. The next day, § 87(2)(b) saw § 87(2)(b) in person and his face was cut and swollen and he had a large abrasion on his right temple, and he looked like he had been severely beaten.

Immediately after § 87(2)(b) and the pursuing officers disappeared around the corner, an officer the investigation has identified as Lt. Orellana began gesturing at § 87(2)(b) who was standing nearby § 87(2)(b) on the sidewalk on the § 87(2)(b) side. Lt. Orellana shouted "That's the bitch that was poppin' shit, that's the bitch right there," gesturing at § 87(2)(b).

§ 87(2)(b) and calling over another officer who was wearing a white shirt. He might have said “That’s the bitch who was talking shit” or “That’s the bitch who was giving me trouble.” Then the officer in a white shirt (who the investigation has determined to be Lt. Bolte) ran to § 87(2)(b) and said “Oh, so you’re part of this shit? You want to be part of these animals out here? You’re under arrest.” Lt. Orellana then grabbed her arm and put it behind her back and handcuffed her. § 87(2)(b) began calling out for her mom, and saying she didn’t do anything. She was standing on the sidewalk when Lt. Orellana grabbed her. He pulled her up by her handcuffed wrist and wrapped his arm around her neck and pulled her toward the RMP which was on the § 87(2)(b) side. § 87(2)(b) was about 5 feet away from § 87(2)(b) when they arrested her, but then stepped back; § 87(2)(b) did not say anything to any officer, because she feared she could be next.

As Lt. Orellana pulled her toward the RMP, § 87(2)(b) shouted “You’re hurting my arm. Mom, mom.” Lt. Bolte said to her, “No, you’re under arrest.” It was hard for § 87(2)(b) to hear exactly what words were exchanged, because the scene was so loud and she had stepped some distance away because she was concerned about being the next target for arrest. Lt. Orellana placed § 87(2)(b) in the vehicle, and then § 87(2)(b) came down and tried to come towards her, asking why she was being arrested. Lt. Bolte told her to stand back and not interfere. § 87(2)(b) called out to § 87(2)(b) asking if she saw what happened to § 87(2)(b) but § 87(2)(b) began walking back to her house and she did not hear the rest of § 87(2)(b) conversation with Lt. Bolte. Because the scene was still so loud and chaotic, § 87(2)(b) remained in the RMP for five to ten minutes before they took her away. After § 87(2)(b) was taken away, § 87(2)(b) went back into her building.

§ 87(2)(b) was not certain why § 87(2)(b) was arrested, but based on the officers’ statements on scene she thought § 87(2)(b) might have had a verbal argument with Lt. Orellana. Other than Lt. Orellana calling § 87(2)(b) a “bitch” and Lt. Bolte referring to the crowd as “animals” § 87(2)(b) did not hear any profanity, discourteous language, or offensive speech from any officers. However, it was loud and she was walking away so certain specific conversations she could not hear. § 87(2)(b) did not see any officer strike § 87(2)(b) or take out their asp or other weapon. The only force she observed was the grabbing and seizing of § 87(2)(b).

Witness: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) on the incident date. She is a Hispanic female, who is 5’5 and weighs 130 pounds with black hair and brown eyes.

CCRB Testimony

On October 4, 2013, § 87(2)(b) was interviewed at § 87(2)(b) (encl. 11a-b).

§ 87(2)(b) had been hanging out with her friends § 87(2)(b) and § 87(2)(b) outside her building at § 87(2)(b) when they heard the sound of a glass bottle break across the street, which seemed to have been thrown from a roof towards two “rookie” officers on foot patrol below. They called in backup, and within 5 minutes many other officers began to arrive on scene, trying to find who threw the bottle. Many people in the neighborhood were hanging out outside, and soon the scene became very chaotic. At least 20 officers arrived on scene, all uniformed, and there were at least 15 people on § 87(2)(b) side of the street.

§ 87(2)(b) his friend § 87(2)(b) and an unidentified friend were walking onto the block from a store to their building, when two officers stopped them. A Hispanic male officer ordered them up against the gate in front of § 87(2)(b). They had three to four teenagers in total standing up against the gate, and frisked them. § 87(2)(b) was standing about two feet away from

§ 87(2)(b) The Hispanic officer frisked § 87(2)(b) and pulled down his sweatpants seemingly as a joke. § 87(2)(b) became upset, pulled his pants back up, and broke away from the gate running down the street. The Hispanic and several other officers pursued him on foot, and when they caught him she assumed that they beat him; § 87(2)(b) did not witness this as this was too far down the block, but she heard § 87(2)(b) screaming. After § 87(2)(b) fled, the scene escalated. Many officers were yelling and cursing, telling everyone to go inside their buildings. People in the crowd were upset by the way that the officers had treated § 87(2)(b). A white-shirted officer that the investigation has identified as Lt. Bolte came running towards the commotion saying “I’m fucking hungry, I’m taking one of you. All you do is start trouble. You don’t got no fucking life.” Other officers that she could not provide descriptions for were shouting profanity at people telling them to get inside, saying “Somebody’s fucking get arrested tonight.” At some point, Lt. Bolte addressed the crowd as “You bunch of animals.” § 87(2)(b) observed an unknown officer push a teenager and he fell over, although § 87(2)(b) could not identify the officer or teenager.

§ 87(2)(b) stepped into the street and began walking towards her car, which was parked outside § 87(2)(b). She was just in the street but on the § 87(2)(b) side maybe a building away when an officer that the investigation has identified as Lt. Orellana, who was also wearing a white shirt, gestured at her and said “I want her, arrest her.” § 87(2)(b) believed it was Lt. Orellana who grabbed § 87(2)(b) by the arm to arrest her, who was the same one that said “I want her, arrest her.” Only two officers out of all the officers on the scene were in white shirts. Lt. Orellana handcuffed § 87(2)(b) and yanked her upwards by the wrist toward the RMP, which was on the § 87(2)(b) side of the street. § 87(2)(b) was shouting that she was not resisting arrest, and called for her mother. When § 87(2)(b) got arrested, § 87(2)(b) went inside and continued watching the scene from her window, as Lt. Bolte shouted “What the fuck did I say, I don’t want nobody out here.”

Lt. Orellana opened the RMP and as he prepared to put her in, § 87(2)(b) heard § 87(2)(b) yell “Get my mother.” Lt. Orellana responded “Shut the fuck up” and pushed her inside. As he put her inside he reached through the door and struck her in the face with a metal object which § 87(2)(b) thought might be a baton. § 87(2)(b) was viewing this happening from her window. § 87(2)(b) was in the RMP 5-10 minutes as the officers attempted to make the people still outside go back into their buildings. The last officers did not leave the scene until 2:00 a.m., and until then they were yelling at anyone who left their building, telling them to go back inside. During this entire incident, § 87(2)(b) never left the immediate vicinity of § 87(2)(b).

Attempts to Contact Civilians

§ 87(2)(b) was identified as a possible victim through BADS records of arrests taking place at the same time and location. A first please call letter was sent to § 87(2)(b) on October 24, 2012. A second letter was sent on January 16, 2013. A first phone call was made and a third letter sent on February 11, 2013. A fourth letter was sent to § 87(2)(b) on March 1, 2013. A second call was made to § 87(2)(b) on March 12, 2013. A fifth letter was sent to § 87(2)(b) on March 18, 2013.

§ 87(2)(b) was identified as a possible victim through BADS records of arrests taking place at the same time and location. A first please call letter was sent to § 87(2)(b) on February 11, 2013. A second please call letter was sent to § 87(2)(b) on March 1, 2013. A LexisNexis search performed on January 23, 2013, did not reveal any phone number for § 87(2)(b).

§ 87(2)(b)

Between October 24, 2012, and September 18, 2013, six letters were sent to § 87(2)(b) and six phone calls were made to her and voicemails left; § 87(2)(b) did not respond to any of these. On October 3, 2013, § 87(2)(b) called and provided a new phone number in a voicemail. A call was made to this number on October 4, 2013, and there was no option to leave a voicemail. A second call was made to § 87(2)(b) on October 7, 2013, and a third call on October 8, 2013. On October 10, 2013, a fourth call was made to § 87(2)(b) and an interview scheduled for October 17, 2013. § 87(2)(b) failed to appear for this interview.

NYPD Statements:

Witness Officer: PO HARRY PELL

- *PO Pell was § 87(2)(b) old on the incident date. He is a white male who stands five feet and seven inches tall and weighs 170 pounds with brown hair and green eyes.*
- *PO Pell's tour began at 8:00 a.m. on August 27, 2012, and he worked overtime until the early hours of August 28, 2012. He was assigned to Operation Impact Shooting Reduction Foot Post 10. He was in uniform, and working with PO Espinal.*

Memo Book

PO Pell indicated in his memo book that at 12:15 a.m. he responded to a dispute at § 87(2)(b) and § 87(2)(b). At 12:30 a.m. he conducted a vertical patrol at § 87(2)(b). At 12:45 a.m. he indicated 91-98, or non-crime corrected and resuming patrol. At 12:50 a.m. he was backing with regard to a gun run at § 87(2)(b) and § 87(2)(b), but at 12:55 a.m. he had returned to § 87(2)(b) and § 87(2)(b) for a disorderly group. At 12:58 a.m. a 10-85 was called to that location. At 1:05 a.m. he indicated "1 under by PO Pell" (encl. 19b-d).

CCRB Testimony

On November 15, 2013, PO Harry Pell was interviewed at the CCRB (encl. 19e-f).

PO Pell stated that the incident began at his foot post on § 87(2)(b) when a civilian called out to him and his partner PO Espinal from a vehicle that there was a fight happening at § 87(2)(b) and § 87(2)(b). PO Pell responded to that scene by foot, only to find that there was no fight. Three other officers were on the scene, although PO Pell could not recall their names. PO Pell and PO Espinal began walking down § 87(2)(b) to resume their patrol, when a glass bottle came down from a rooftop above and struck PO Espinal, causing shards of glass to injure his body and face. PO Pell and the four other officers performed a vertical patrol at § 87(2)(b) to determine if they could find who had thrown the bottle.

When they got to the top of the roof, they scanned the sidewalk and the adjacent roofs, and found that civilians were shouting out derogatory comments to them. Civilians on the ground were looking up at them, making threats against their lives, making racially offensive remarks such as "you nigger ass pussy cops," and making vulgar and threatening hand gestures which PO Pell could not describe. When PO Pell and the other officers went back down to the sidewalk after the vertical, they called an ambulance for PO Espinal. There was a crowd around still making threats, but PO Pell did not consider it to be a serious encounter, as this type of scenario happens frequently. Other units came to back them at § 87(2)(b) and § 87(2)(b). Shortly after, PO Pell responded to a report of a man with a gun a block west at § 87(2)(b), but upon finding nobody, PO Pell returned to § 87(2)(b) and § 87(2)(b) around 12:55 a.m.

When PO Pell returned to § 87(2)(b) and § 87(2)(b) the crowd had grown "alarmingly" larger, and was very belligerent and rowdy. They continued to make verbal threats,

although they were not physically violent. People were throwing other objects such as bottles and cans from roofs and windows along the block. The officers on the scene were trying to disperse the crowd, and stopping and questioning people regarding who was throwing objects. PO Pell approached a man who he identified by photograph as § 87(2)(b) who was standing on a stoop waving his arms and yelling. PO Pell asked § 87(2)(b) questions about who threw the objects and who made threats, but § 87(2)(b) refused to answer them. § 87(2)(b) reached out his hand to try and push PO Pell's face, but PO Pell moved and § 87(2)(b)'s hand just pushed his chest area. After this, § 87(2)(b) broke into a run and several officers chased after him, although PO Pell did not. PO Pell did not see § 87(2)(b) actually arrested, or observe any force used against him, nor did he see any strip-search or hear profanity used on the scene by officers. However, civilians were definitely using profanity toward officers.

After § 87(2)(b) shoved PO Pell, an officer called a 10-85, and other units began responding to the scene, including Lt. Orellana and Lt. Bolte. PO Pell did not recall any of the racially or sexually offensive language or profanity or force alleged against Lt. Orellana and Lt. Bolte, nor did he see any of the other arrests. PO Pell did not recognize the photographs of § 87(2)(b) or § 87(2)(b). PO Pell was assigned the arrest paperwork for § 87(2)(b) but because he had a flight to catch that morning, he assigned it to another officer. PO Pell stated that only one 10-85 was called during the incident, and he was on scene until all the arrests were complete and the situation had calmed down.

Subject Officer: LT. JOHNNY ORELLANA

- Lt. Orellana was § 87(2)(b) old on the incident date. He is a Hispanic male who stands five feet and eight inches tall and weighs 175 pounds with black hair and brown eyes.
- Lt. Orellana's tour began at 10:00 p.m. on August 27, 2013, and concluded at 7:45 a.m. on August 28, 2012. He was platoon commander for Operation Impact, was in uniform, and assigned to a marked vehicle with PO Calvin Black. He has since been promoted to captain, but was a lieutenant at the time of this incident.

Memo Book

Lt. Orellana indicated in his memo book that at 12:45 a.m. a 10-85 was called at § 87(2)(b) and § 87(2)(b) by an Impact officer. At 12:55 a.m. there were three arrests made. A second 10-85 was called at 1:00 a.m. by Impact (encl. 12b-d).

Narrative from Decline To Prosecute Form

§ 87(2)(a) 160.50, § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Testimony

On November 14, 2013, Lt. Orellana was interviewed at the CCRB (encl. 12d-e). Immediately before 12:45 a.m.'s 10-85, Lt. Orellana was 2-3 blocks west with other officers trying to locate a man with a gun they had received a call about. While canvassing the area, Lt. Orellana heard the 10-85 come over the radio, and drove to the scene of § 87(2)(b) and § 87(2)(b). Lt. Orellana could not recall which officer called the 10-85, as there were approximately 300 Impact officers in that precinct and Lt. Orellana was in the 44th Precinct and not Impact at the time. When Lt. Orellana arrived at § 87(2)(b) and § 87(2)(b) there were

three officers already on the scene, and more than 20 civilians scattered around the area. Lt. Orellana was surprised because there were no arrests made, so he spoke to the officer who called the 10-85. The officer stated that somebody had thrown a bottle off the roof and it had struck him in the chest.

The crowd of civilians was intoxicated and rowdy, and there were many open bottles of beer. Lt. Orellana and the officers began telling people to move inside the houses or go home, attempting to clear the block. The civilians were uncooperative, and refused numerous orders to move out of the street and get indoors. Lt. Orellana did not see any objects being thrown. Lt. Orellana recognized a photograph of § 87(2)(b) and stated that she was one of the civilians who was refusing to clear off the street and sidewalk. She was with several friends, all of whom were ignoring the orders from the officers. A commotion broke out, and a man began running with several officers running after him; Lt. Orellana identified the man who ran as § 87(2)(b). Lt. Orellana did not see what the context was of this foot pursuit.

§ 87(2)(b) was apprehended, though Lt. Orellana did not see the actual arrest. Lt. Orellana did not see force used against him, and did not know what the bandage on his face in his arrest photograph was from. After this arrest, another 10-85 was called because an arrest was made, and there was a concern that the crowd might get more belligerent. Lt. Orellana did not see any civilians stopped or frisked on scene, nor did he see any person strip-searched; if anyone was strip-searched on scene, he would definitely have known about it. Lt. Orellana did not recall any officers using profanity, and neither did he recall if any civilians were using profanity. About six other officers responded to the scene after the second 10-85, including Lt. Bolte. Lt. Orellana did not recall if Lt. Bolte was using profanity or calling people in the crowd “animals.”

After the second 10-85 the crowd was more compliant. However, § 87(2)(b) continued to refuse to leave the street; she was being vocal and verbally combative, and Lt. Orellana and another person took her into custody. Lt. Orellana borrowed somebody else’s handcuffs and grabbed § 87(2)(b) taking her down to the ground and placing the handcuffs on her. § 87(2)(b) was resisting arrest, refusing to put her hands behind her back, and flailing her arms. Lt. Orellana and the other officer, who he could not remember, grabbed her arms and forced her down onto her face, but he did not slam her down or use excessive force. Some other persons were arrested right around this time also; Lt. Orellana did not recognize the photographs of arrestees § 87(2)(b) and § 87(2)(b).

Lt. Orellana placed § 87(2)(b) in an RMP. He denied calling her a “bitch,” “dyke,” “nigger,” or “animal,” and denied making any threats of arrest. Lt. Orellana did not use any force against § 87(2)(b) other than taking her to the ground, and did not draw his asp or any other object and strike § 87(2)(b) with it. Lt. Orellana was not carrying a flashlight at the time. Lt. Orellana did not recognize a photograph of § 87(2)(b) and did not interact with her. Lt. Orellana stayed on the scene until the arrestees were transported to the precinct, and the scene had calmed down. Back at the precinct, Lt. Orellana did not have any interaction with any of the arrested persons.

Subject Officer: LT. RONALD BOLTE

- Lt. Bolte was § 87(2)(b) old on the incident date. He is a white male who stands six feet tall and weighs 225 pounds with brown hair and blue eyes.
- Lt. Bolte’s tour began at 4:45 p.m. on August 27, 2012, and concluded at 2:35 a.m. on August 28, 2012. He was assigned to administrative work on the “Quest For Excellence” computer program at the 44th Precinct Stationhouse. He was in uniform, and not assigned to a vehicle or working with anyone else.

Memo Book

Lt. Bolte had no memo book entries regarding the incident. (encl. 13b-c).

CCRB Testimony

On October 10, 2013, Lieutenant Bolte was interviewed at the CCRB (encl. 13d-f). Due to lack of entries in his memo book, Lt. Bolte at first stated he was not there, then stated that he could not recall any details of being there, and then later stated that he was there, assaulted by a civilian, and took that civilian into custody.

In the early morning hours on August 28, 2012, Lt. Bolte was in the stationhouse when an unidentified officer verbally made him aware that an Impact officer had been injured in the vicinity of § 87(2)(b). Lt. Bolte drove himself to the scene in a marked RMP to investigate the situation. When he arrived in the vicinity of § 87(2)(b), he observed a scene of “chaos” as 30-40 officers attempted to get approximately 25-30 civilians out of the street and control the crowd. People in the top floors of the buildings on the east side of the street were throwing canned peas and yams down at the officers, and the ground was littered in crushed cans and food from RMPs running them over. Lt. Bolte learned that this situation began when a thrown can struck an officer (either PO Escoto or PO Nixon) in the chest and a 10-85 was called. The scene was noisy and disorderly, and many of the civilians were intoxicated; there had been a party going on in a nearby vestibule, and broken beer bottles were scattered around the street and sidewalk. Lt. Bolte denied using profanity or offensive language when he arrived, or at any point during the incident.

Many different people in different groups had been hanging out all along the various stoops that night, and the civilians were not all concentrated in one place. As officers ordered civilians to leave the street, they were yelling things like, “You can’t fucking tell me where to walk” and similar verbal refusals. Lt. Bolte ducked down behind a civilian van in front of § 87(2)(b) to avoid being struck by falling cans, and tried to determine which windows the cans were coming from because he wanted to arrest the people throwing them. Lt. Bolte was shouting at officers and civilians to look up and watch their heads, saying that if they’re hit in the heads they will probably be killed. Lt. Bolte saw a civilian next to him and told him to get down and watch his head; the civilian responded “Fuck you, I don’t have to. This is my block.”

Lt. Bolte stepped back a little to observe the building, and a can came down right next to him. Lt. Bolte grabbed the civilian by the shoulder and pushed him down to help him avoid the falling cans. The civilian shouted “Get the fuck off me” and pushed Lt. Bolte with both hands. Lt. Bolte then seized him and put him in handcuffs; he believed he was intoxicated because of his belligerent demeanor. He could not recall which civilian this was, nor his name or race, nor did he recognize the civilian from any of the arrest photographs from that night which were shown to him during the interview. Lt. Bolte did not bring this civilian back to the stationhouse, and another officer processed the paperwork. Lt. Bolte was also aware that another person was being arrested a little further down the block.

Lt. Bolte could not recall which supervisors or officers were on scene, nor any of the orders he issued other than to watch out for falling cans. He did not observe any other arrests, any strip search, use of force, or threat of arrest by himself or any other officer. He was on scene 10 minutes in total and then drove back to the stationhouse to complete his tour.

Witness Officer: PO ROBERT MICELI

- PO Miceli was § 87(2)(b) old on the incident date. He is a white male who stands five feet and ten inches tall and weighs 250 pounds with black hair and hazel eyes.
- PO Miceli's tour began at 7:30 p.m. on August 27, 2012, and concluded at 4:05 a.m. on August 28, 2012. He was assigned to Operation Impact Foot Post 2. He was in uniform, and working solo.

Arrest and Complaint Reports (encl. 15a-r)

- § 87(2)(a) 160.50 [REDACTED]
- § 87(2)(a) 160.50 [REDACTED]
- § 87(2)(b) [REDACTED]
- § 87(2)(a) 160.50 [REDACTED]

Memo Book

PO Miceli indicated in his memo book that at 1:30 a.m. on August 28, 2012, he was still at his foot post on Grand Concourse at East 170th Street giving a parking summons to § 87(2)(b). At 2:40 a.m. he indicated he was back at the 44th Precinct being assigned four arrests by Lieutenant Bolte. At 3:00 a.m. PO Miceli was obtaining info on the arrests from the officers who physically took them into custody. At 3:40 a.m. he was writing "scratch 61s" which the supervisor must approve before the actual paperwork is filed. At 4:00 a.m. the UF-61s were being entered. At 5:00 a.m. PO Miceli was helping Sgt. Hernandez with a UF-61 for PO Espinal's line of duty injury. Between 5:35 a.m. and 8:40 a.m. the arrest paperwork was being processed. PO Miceli's end of tour was at 9:00 a.m. (encl. 14b-e).

CCRB Testimony

On October 23, 2013, PO Miceli was interviewed at the CCRB (encl. 16a-b).

PO Miceli was not on the scene of the incident. He recalled that later at the stationhouse, he learned that PO Espinal was struck with a glass bottle thrown from a roof and injured, and a 10-85 was called after which the four arrests were made. PO Miceli returned around 2:35 a.m. to the 44th Precinct stationhouse because Lt. Bolte called him there to fill out the arrest paperwork. There were four persons already held in the holding cell. Around 3:00 a.m. PO Miceli spoke to all four assigned officers to find out the details of why each individual got arrested.

Witness Officer: PO BRIANT NIXON

- PO Nixon was § 87(2)(b) old on the incident date. He is a black male who stands five feet and eleven inches tall and weighs 175 pounds with black hair and brown eyes.
- PO Nixon's tour began at 7:30 p.m. on August 27, 2012, and concluded at 4:05 a.m. on August 28, 2012. He was assigned to Operation Impact Shooting Reduction Foot Post 11. He was in uniform, and working with PO Michael Woloski.

Memo Book

PO Nixon indicated in his memo book that 12:50 a.m. he went to back the 44th Precinct lieutenant in regards to a male with a gun. At 12:55 a.m. PO Nixon responded to a disorderly group at § 87(2)(b) and § 87(2)(b). At 12:58 a.m. a 10-85 was called for that disorderly group at that location. A male on scene pushed PO Pell and ran, and officers pursued him northbound on § 87(2)(b). The male was cuffed and arrested, and this was verified by Sgt. Hernandez. PO Nixon had no other entries until 3:09 a.m. which was a parking summons (encl. 18b-c).

CCRB Testimony

On October 30, 2013, PO Nixon was interviewed at the CCRB (encl. 18d-e).

At 12:50 a.m. there was a radio run for a possible man with a gun. PO Nixon was on his way to respond when a call for a disorderly group came over several minutes later. Because PO Nixon was on foot, he responded to the nearby disorderly group; the officers in the area who were in RMPs went to the gun run because they were faster and more mobile. PO Nixon arrived at the disorderly group, which constituted a large crowd of 8-10 people at § 87(2)(b) and § 87(2)(b). There were already officers on scene and more arriving, and the disorderly group was screaming at the officers and arguing with them verbally. PO Nixon did not recall the context of the argument or why they were screaming, but their demeanor was definitely hostile. Other people were on the stairs of the buildings, with the officers below them, trying to clear the area. PO Nixon did not see any civilian frisked, searched, or strip-searched. PO Nixon did not know how the incident started, or why the 10-85 was called. He assumed the 10-85 was called for the report of the man with the gun.

A civilian, who PO Nixon identified by photograph as § 87(2)(b) pushed PO Pell with both hands in the chest, and started running northbound on § 87(2)(b). He ran in a zig-zag, across onto a front yard, back onto the sidewalk, with three officers on foot and possibly others in vehicles chasing after him. PO Nixon did not see § 87(2)(b) get apprehended, as § 87(2)(b) was behind a car when the officers caught up to him. PO Nixon ran over to help the officers handcuff § 87(2)(b). § 87(2)(b)'s demeanor was quiet, and he was not injured. In his arrest photograph PO Nixon noted the bandage on his face, but did not know why that was there or how he had been injured.

PO Nixon and the other officers escorted § 87(2)(b) back to the RMP near § 87(2)(b) and § 87(2)(b). By this time, there was a "big scene" with many more people than before screaming and shouting on the sidewalks and in the street. PO Nixon did not see any officer use force against any civilian on scene, nor did he hear any profanity or racial comments used by any officer toward a civilian. More officers were on scene too, including several lieutenants, although PO Nixon did not recall which lieutenants specifically. The crowd was approximately 20-25 civilians, and they were screaming, but PO Nixon did not know why. There were more than 10 police officers on scene and they were trying to clear people out of the street. PO Nixon did not see any objects being thrown from windows or roofs, and was not aware of this condition; there was no broken glass or debris in the street that PO Nixon could recall. PO Nixon did not see any other person get arrested, nor did he recognize arrest photographs of § 87(2)(b).

§ 87(2)(b) or § 87(2)(b) Shortly after escorting § 87(2)(b) back to the RMP, PO Nixon was told he had to go back to his foot post two blocks away on § 87(2)(b) and § 87(2)(b)

PO Nixon did not interact with any arrested person back at the stationhouse. PO Nixon did not hear any civilian complain of injuries.

Witness Officer: PO MICHAEL WOLOSKI

- PO Woloski was § 87(2)(b) old on the incident date. He is a white male who stands five feet and ten inches tall and weighs 190 pounds with brown hair and brown eyes.
- PO Woloski's tour began at 7:30 p.m. on August 27, 2012, and concluded at 4:05 a.m. on August 28, 2012. He was assigned to Operation Impact Shooting Reduction Foot Post 11. He was in uniform, and working with PO Briant Nixon.

Memo Book

PO Woloski indicated in his memo book that at 12:15 a.m. there was a dispute at § 87(2)(b) and § 87(2)(b). At 12:30 a.m. PO Woloski performed a vertical inspection at § 87(2)(b). At 12:45 a.m. he indicated non-crime corrected and patrol resumed. At 12:50 a.m. PO Woloski indicated he was "backing 44 LT in regards to 10-10 poss. Firearm § 87(2)(b). At 12:55 a.m. there was a disorderly group at § 87(2)(b) and § 87(2)(b). At 12:58 a.m. a 10-85 was called, and PO Pell made one arrest at 1:05 a.m. At 1:10 a.m. PO Woloski issued a summons to a man for being in a park at 167th and College after dark (encl. 17b-c).

CCRB Testimony

On October 21, 2013, PO Woloski was interviewed at the CCRB (encl. 17d-e).

Around 12:55 a.m. on August 28, 2012, PO Woloski and his partner PO Nixon were on a foot post in the vicinity of § 87(2)(b) and § 87(2)(b) when he observed a disorderly crowd of more than 10 people being loud and blocking a sidewalk. PO Woloski recalled that his foot post was at the scene of the disorderly group, but he could not remember if he was the first officer to observe that condition. At some point, a 10-85 was called, although PO Woloski could not recall who called it, why it was called, or if he was there when it was called. PO Woloski did not recall giving any orders to disperse to the crowd.

Other officers began to respond to the 10-85, and a verbal conflict escalated between officers and civilians. PO Woloski could not recall any statements civilians or officers were making. At one point, a civilian began to run and officers chased after him. PO Woloski could not recall how far away this civilian ran. PO Woloski was shown arrest photos of the four persons arrested that night, but he did not recognize any of the individuals. PO Woloski did not recall any of the context behind why § 87(2)(b) fled or why officers chased him, nor did he recall observing officers strip search or use force against § 87(2)(b).

PO Woloski could not recall who was commanding officer on scene, nor did he recall any of the allegations taking place – he did not observe any of the arrests, and did not see any threats of arrest, uses of force, or uses of profanity. PO Woloski could not recall if he was there from the beginning, but he was there until the very end. The crowd eventually dispersed and he resumed patrol. PO Woloski could not recall how long the entire encounter took. PO Woloski could not recall if he interacted with any person who was arrested either on scene or at the stationhouse, nor where he physically was positioned during the verbal dispute between officers and civilians.

Witness Officer: PO CALVIN BLACK

- PO Black was § 87(2)(b) old on the incident date. He is a white male who stands six feet and one inch tall and weighs 171 pounds with brown hair and brown eyes.
- PO Black's tour began at 11:15 p.m. on August 27, 2012, and concluded at 7:50 a.m. on August 28, 2012. PO Black was Lt. Orellana's operator, and was working in uniform in a marked vehicle.

Memo Book

PO Black did not bring his memo book but stated he would fax it over as soon as possible. PO Black brought his memo book for August 2013 due to confusion over the date. A follow-up phone call with PO Black in January 2014 indicated that he would send it over shortly.

CCRB Testimony

On November 27, 2013, PO Calvin Black was interviewed at the CCRB (encl. 20a-b).

PO Black had no recollection of the incident, nor if he drove Lt. Orellana to respond to the incident. He did not recognize photographs of any of the four arrested persons. When the incident was described to him, he said he remembered a 10-85 being called but did not know for whom or why. PO Black has responded to the vicinity of § 87(2)(b) and § 87(2)(b) before, because it is an active area.

Officers not interviewed

The following other officers were identified by roll call and SPRINT records as being present on scene: PO Jose Espinal (Shooting Reduction Foot Post #10), PO Jose Vives and Sgt. Christian Hernandez (operator and sergeant), PO Michael Brosnan and PO Michele Butera (both Sector D), and PO Robert McCadden and PO Martin McManus (both Sector K).

§ 87(2)(g)

[REDACTED]

Medical Records

- A subpoena to § 87(2)(b) revealed that no records could be found for § 87(2)(b) for the dates requested (encl. 28b-c). § 87(2)(b) did not provide any corroborating information for her hospital visit.

NYPD Documents

SPRINT Records

The first SPRINT records of this incident relate to a 10-85 for a foot pursuit of a male which the investigation has identified as § 87(2)(b) at 12:41 a.m. § 87(2)(b) was in custody at 12:44 a.m. A lieutenant, sectors D and K, and various Impact foot posts responded to this first 10-85. Follow-up SPRINTS show a second 10-85 being called to § 87(2)(b) and § 87(2)(b) at 12:58 a.m. A lieutenant, the anti-crime sergeant, and sector P responded within minutes, and three more arrests were made. All units were off scene by 1:45 a.m. (encl. 22a-g). SPRINT records were used to identify witness officers.

Command log

The command log from the 44th Precinct shows that § 87(2)(b) had an injury to his face when his arrest was logged in at 1:00 a.m. § 87(2)(b)'s condition is listed as apparently normal (encl. 25a-g). This command log was also used to identify witness officers.

IMPACT foot post log

The IMPACT foot post log details the officers who were assigned to Shooting Reduction Post #11 (§ 87(2)(b) between § 87(2)(b) and § 87(2)(b)) and Shooting Reduction Post #10 (§ 87(2)(b) between § 87(2)(b) and § 87(2)(b)), the nearest foot posts to the scene of the incident (encl. 26a). This foot post log was used to identify witness officers.

Other Evidence

- A subpoena to the owners of § 87(2)(b) revealed that no video surveillance footage could be found for the incident date and time (encl. 28a).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) has filed a notice of claim with the city in regards to this incident, and § 87(2)(b) has filed a federal civil complaint (encl. 27n-u). § 87(2)(b) is seeking two million dollars plus attorney's fees, and § 87(2)(b) is seeking unspecified damages.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]

Civilians CCRB History

- This is the first CCRB complaint filed by either § 87(2)(b) or § 87(2)(b) (encl. 4a).

Subject Officers CCRB History

- Lt. Bolte has been a member of the service for sixteen years and there is one substantiated CCRB allegation against him. In CCRB #200507396 Lt. Bolte was found to have refused to provide his name and shield number. The Board recommended charges but the NYPD imposed instructions (encl. 3c-e).
- Lt. Orellana has been a member of the service for fifteen years and there are no substantiated CCRB allegations against him (encl. 3a-b).

Conclusion

Identification of Subject Officers

§ 87(2)(b) stated that it was four white and Hispanic officers who stopped, chased, and beat him, but neither he nor § 87(2)(b) could describe the officer that pulled down § 87(2)(b)'s pants. § 87(2)(b) described the officer who pulled down § 87(2)(b)'s pants as a Hispanic male in his thirties, standing 5'5. Neither civilian witnesses nor other officers observed any officers use force against § 87(2)(b). § 87(2)(b)'s subsequent lack of cooperation meant that he could not view photo arrays to identify officers.

Sgt. Hernandez who was the IMPACT sergeant and his operator PO Vives are both Hispanic males who stand at 5'7 and 5'3 and were thirty six and twenty five years old respectively on the incident date. However, the SPRINT records enclosed at 22b in the case file indicate that at 12:41 a.m. an IMPACT foot post called a 10-85 for a foot pursuit; two lines later down, "ST2" who is identified on the roll call as Sgt. Hernandez indicates 10-84, or that he is on scene. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)'s arrest report identified Lt. Orellana as the officer assigned to her arrest. § 87(2)(b) in her interview identified Lt. Orellana by name and by physical description as the officer who physically took her into custody, threatened her with arrest, spoke offensively and discourteously to her, and used force against her; she obtained his name from § 87(2)(b) who asked his name in the stationhouse after the arrests. § 87(2)(b) described Lt. Orellana as a Hispanic male standing at 5'8 and weighing one hundred ninety lbs; Lt. Orellana's pedigree is a Hispanic male who stands 5'8 and weighs one hundred seventy five lbs. Lt. Orellana corroborated that he handcuffed § 87(2)(b) took her to the ground, and placed her in an RMP. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) identified Lt. Bolte by name and by physical description as the officer who spoke discourteously and offensively and shoved § 87(2)(b) named § 87(2)(b) and § 87(2)(b) all described a white or light-skinned male officer in a white uniform in his forties or fifties coming to the scene while the incident was well underway, and calling the crowd "animals," and standing near Lt. Orellana while § 87(2)(b) was arrested. Lt. Orellana confirmed that Lt. Bolte responded to the incident; Lt. Bolte stated that he was on scene and made an arrest. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A—Abuse of Authority: Officers strip-searched

§ 87(2)(b)

Allegation B—Force: Officers used physical force against

§ 87(2)(b)

In his phone statement, § 87(2)(b) stated that while being stopped by four officers, one of them pulled down his pants. § 87(2)(b) ran, and the four officers chased him and beat him upon taking him into custody. § 87(2)(b) and § 87(2)(b)'s statements corroborated these allegations, although neither of them witnessed the force used against him. § 87(2)(b)'s arrest photograph corroborates an injury to the left side of his face.

PO Pell said that he approached § 87(2)(b) because he was shouting and cursing, and § 87(2)(b) shoved him and ran; other officers pursued him and arrested him. PO Nixon witnessed this shove occur, and also observed officers pursuing and arresting § 87(2)(b). Both PO Pell and PO Nixon were close at hand, but they did not run after § 87(2)(b); they did not observe the arrest, nor did they corroborate the allegations that § 87(2)(b)'s pants were pulled down or any force was used against him.

§ 87(2)(b) failed to appear for one interview, and subsequently discontinued contact with the investigation. § 87(2)(g)

Allegation C—Abuse of Authority: Lt. Johnny Orellana threatened

§ 87(2)(b)

with arrest.

It is undisputed that individuals were throwing objects down from the windows and/or roofs of surrounding buildings onto the officers below. It is also undisputed that by the time the first 10-85 was called and Lt. Orellana responded to the scene, PO Espinal had already been struck and injured by a glass bottle that had been thrown at him from above. § 87(2)(g)

It is also undisputed that officers were ordering civilians to get out of the street and to clear the scene by going back up to their buildings. § 87(2)(b) stated she was standing in the street to watch the officers take § 87(2)(b) into custody when Lt. Orellana told her to “Get [her] fucking ass back on the sidewalk.” § 87(2)(b) did not immediately comply, but instead told Lt. Orellana that she had family who worked for the NYPD and she felt his profanity was unprofessional. Lt. Orellana responded “Get out of here and shut the fuck up, before I arrest your ass.” § 87(2)(b) continued to argue with Lt. Orellana until her friend § 87(2)(b) convinced her to walk away. § 87(2)(g)

§ 87(2)(g)

Allegation D—Discourtesy: Lt. Ronald Bolte spoke discourteously to § 87(2)(b) and other individuals.

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) were standing nearby each other when Lt. Bolte arrived on scene, and heard similar speech from Lt. Bolte. § 87(2)(b) said Lt. Bolte shouted “I’m thirsty, I’m thirsty. I want someone to do something. You fucking animals.” § 87(2)(b) described Lt. Bolte shouting “I’m fucking hungry, I’m taking one of you. All you do is start trouble, you don’t got no fucking life... You bunch of animals.” § 87(2)(b) and § 87(2)(b) were standing nearby, and also observed Lt. Bolte standing near Lt. Orellana and speaking to § 87(2)(b). § 87(2)(b) heard Lt. Bolte say, “You all are a bunch of animals out here,” while § 87(2)(b) heard Lt. Bolte say to § 87(2)(b) “Oh, so you’re part of this shit? You want to be part of these animals out here?”

Lt. Bolte denied using such language toward civilians on scene. No witness officers corroborated the allegation.

§ 87(2)(g)

Patrol Guide procedure 203-10 prohibits officers from using discourteous or disrespectful language towards civilians (encl. 1a-b). In *NYPD vs. Haynes* (Disciplinary Case No. #77440/01, decided August 2003) the subject officer was found to be guilty of using offensive language due to the fact that his offensive speech was “gratuitously made in that it was completely unnecessary and served no law enforcement purpose. This differentiates the Respondent’s comment from discourteous remarks made by officers during stressful street confrontations for the legitimate purpose of gaining control of a potentially dangerous situation” (encl. 1c-n). § 87(2)(g)

Allegation E—Discourtesy: Lt. Ronald Bolte spoke discourteously to

§ 87(2)(b)

Allegation F—Force: Lt. Ronald Bolte used physical force against § 87(2)(b)

§ 87(2)(b) alleged that when Lt. Bolte arrived on scene, he said to § 87(2)(b) “fat titty boy, take your ass inside the house.” § 87(2)(b) did not know who this individual was and could not describe him. § 87(2)(b) also stated that Lt. Bolte shoved her friend § 87(2)(b) for not leaving the area fast enough. § 87(2)(b) could not provide § 87(2)(b)’s full name or contact information, and no other civilian or officer recalled a § 87(2)(b) or any incidence of Lt. Bolte pushing or shoving a person out of the street.

§ 87(2)(g)

§ 87(2)(g)

Allegation G—Offensive Language: Lt. Johnny Orellana made remarks based upon the sex of § 87(2)(b)

§ 87(2)(b) alleged that on her second encounter with Lt. Orellana, he gestured to her and said to Lt. Bolte, “This is the bitch that I had words with a little while ago. She got a lot of mouth. I want her arrested.” Upon effecting the arrest and placing her into the RMP, Lt. Orellana called her a “dyke.”

§ 87(2)(b) stated that she saw Lt. Orellana gesturing to § 87(2)(b) and saying to Lt. Bolte, “That’s the bitch that was poppin’ shit, that’s the bitch right there.” He might have said “That’s the bitch who was talking shit” or “That’s the bitch who was giving me trouble,” but § 87(2)(b) was certain that he used the word “bitch” toward her. § 87(2)(b) then walked away to avoid involvement. § 87(2)(b) was walking away from the scene when § 87(2)(b) was arrested. While she heard Lt. Orellana shouting “I want her, arrest her,” she then went inside her house and did not corroborate the alleged language. § 87(2)(b) stated that when she observed § 87(2)(b) in the RMP, Lt. Orellana was standing outside saying “Look who’s crying now. Bitch don’t have a lot of mouth now,” in reference to § 87(2)(b).

Lt. Orellana denied using this language, and none of the other officers recalled this language being used by Lt. Orellana.

§ 87(2)(g)

Patrol Guide procedure 203-10 prohibits officers from using discourteous or disrespectful remarks regarding another person’s gender (encl. 1a-b). In NYPD vs. Haynes (Disciplinary Case No. #77440/01, decided August 2003) the subject officer was found to be guilty of using offensive language due to the fact that his offensive speech was “gratuitously made in that it was completely unnecessary and served no law enforcement purpose. This differentiates the Respondent’s comment from discourteous remarks made by officers during stressful street confrontations for the legitimate purpose of gaining control of a potentially dangerous situation” (encl. 1c-n).

Allegation H—Force: Lt. Johnny Orellana struck § 87(2)(b) with a flashlight.

Allegation I—Offensive Language: Lt. Johnny Orellana made remarks to § 87(2)(b)

based on race.

§ 87(2)(b) alleged that when Lt. Orellana arrested her, he called her a “nigger” and an “animal,” while sitting in the RMP. § 87(2)(b) said that Lt. Orellana had a conversation with § 87(2)(b) and then turned around and struck her in the shoulder with a flashlight. Lt. Orellana’s operator, identified as PO Black, was present during this incident.

§ 87(2)(b) said that she observed Lt. Orellana strike the window of the RMP with his flashlight, but later said that she could not tell if the flashlight struck the window or struck § 87(2)(b). § 87(2)(b) stated she observed Lt. Orellana strike § 87(2)(b) in the face with a metal object while placing her into the RMP, not when she was already inside. § 87(2)(b) observed § 87(2)(b) being placed in the RMP, but did not see any force either then or at any point during

the five to ten minutes § 87(2)(b) was on scene in the RMP. Lt. Orellana denied that he used any force or spoke offensively to § 87(2)(b) on scene or in the RMP, and PO Black denied observing this. No other officer recalled the force occurring and there was no visible injury to her face in the arrest photograph or in the photographs that § 87(2)(b) provided the investigation.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date